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Case Number: 25NWCV04634 Hearing Date: July 21, 2026 Dept: SEC

VERNOLA-SALAS vs URBAN SOCCER 5 CENTER, LLC.

CASE NO.: 25NWCV04634

HEARING: 7/21/26 @ 9:30 AM

#11

TENTATIVE RULING

Defendant URBAN SOCCER 5 CENTER, LLC.'s Motion for Summary Judgment is DENIED.

Plaintiff to give NOTICE.

Defendant URBAN SOCCER 5 CENTER, LLC. (Defendant) moves for summary judgment as to the sole cause of action for unlawful detainer asserted against it by plaintiff LISA MARIE VERNOLASALAS (Plaintiff).

BACKGROUND

This is an unlawful detainer action. Plaintiff alleges that Defendant entered into a written lease dated July 23, 2014, that the lease term expired on August 31, 2024, and that Defendant thereafter remained in possession as a purported month-to-month tenant. (Complaint, ¶¶ 8–10.) Plaintiff further alleges that Defendant failed to pay rent in the monthly amount of \$41,152.55 for the period of April 2025 through December 2025, resulting in service of a Three-Day Notice to Pay Rent or Quit dated December 16, 2025. (Id., ¶¶ 16–19.)

LEGAL STANDARD

A party seeking summary judgment has the burden of producing evidentiary facts sufficient to entitle them to judgment as a matter of law. (Code Civil Proc. (CCP), § 437c, subd. (c).) The moving party must make an affirmative showing that they are entitled to judgment irrespective of whether or not the opposing party files an opposition. (Villa v. McFerren (1995) 35 Cal.App.4th 733, 742743.) Thus, “the initial burden is always on the moving party to make a prima facie showing that there

are no triable issues of material fact.” (Scaif v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519 (citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

When a plaintiff seeks summary judgment, they must produce admissible evidence on each element of each cause of action on which judgment is sought. (CCP § 437c(p)(1).) When a defendant seeks summary judgment, they have the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (CCP § 437c(p)(2).)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets their initial movant’s burden. (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 840.) Once the initial movant’s burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the weighing procedures of trial. (CCP § 437c(p).) The opposing party may not simply rely on their allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

DISCUSSION

Unlawful Detainer

The standard elements of an unlawful detainer action for nonpayment of rent are (1) the tenant is in possession of the premises, (2) the tenant is in default for nonpayment of rent, (3) the tenant has been properly served with written notice to pay rent or quit of no less than three days, and (4) the tenant’s default continues after the three-day notice period has elapsed. (Code Civ. Proc., § 1161, subd. (2); Bawa v. Terhune (2019) 33 Cal.App.5th Supp. 1, 5–6.) Due to the summary nature of the proceeding, strict compliance with the statutory requirements is a prerequisite to a landlord’s recovery of possession. (Dr. Leevil, LLC v. Westlake Health Care Center (2018) 6 Cal.5th 474, 480.)

Defendant argues that Plaintiff cannot establish her cause of action for unlawful detainer. Under Plaintiff’s theory of unlawful detainer, the fixed lease term expired on August 31, 2024. Defendant disputes this, but even if this were true, the “month-to-month tenancy” Plaintiff pleaded did not arise because Plaintiff did not receive rent after September 2024. Defendant contends that a holdover after an expired fixed term becomes a periodic (month-to-month) tenancy only if the landlord accepts rent after expiration. (Civ. Code, § 1945; Aviel v. Ng (2008) 161 Cal.App.4th 809, 820.)

Civil Code section 1945 provides, “if a lessee of real property remains in possession thereof after the expiration of the hiring, and the lessor accepts rent from him, the parties are presumed to have renewed the hiring on the same terms and for the same time, not exceeding one month when the rent is payable monthly, nor in any case one year.” “When the term of a lease expires but the lessee holds over without the owner’s consent, he becomes a tenant at sufferance. [Citation.] ‘Since the possession of the tenant at sufferance is wrongful, the owner may elect to regard the tenant as a trespasser....’ [Citation.] If instead the owner accepts rent from a tenant at sufferance he accepts the tenant’s possession as rightful and the tenancy is converted into a periodic one. (Kaufman v. Goldman (2011) 195 Cal.App.4th 734, 740.)

Defendant argues that Plaintiff has admitted, under oath at her deposition, that she received nothing from Defendant after September 2024. Thus, the statutory presumption that creates a periodic tenancy was never triggered, and the “month-to-month” label in paragraph 10 is an unsupported legal conclusion that Plaintiff’s own admission negates.

Defendant further argues that with no subsisting lease and no periodic tenancy, the sum Plaintiff demands is not “rent” within the meaning of section 1161(2); the money would be, at most, damages for continued occupancy. Plaintiff cannot invoke section 1161.1’s reasonable-estimate safe harbor to save the notice. That safe harbor presupposes that rent is owed and

protects only a good-faith estimate of that rent; it does not validate a notice where, on Plaintiff's own allegations, no 'rent' is owed at all. (See *Levitz Furniture Co. v. Wingtip Communications, Inc.* (2001) 86 Cal.App.4th 1035, 1040, 103.)

The Court finds that Defendant has failed to meet its prima facie burden. The obligation to pay rent in a California unlawful detainer action is not exclusively governed by Code of Civil Procedure section 1161(2). While section 1161(2) is the primary and most commonly invoked provision for nonpayment of rent, rent payment obligations in unlawful detainer proceedings arise under multiple statutory provisions, including section 1161(1) (which supplements section 1161(2) for commercial property).

First, Defendant fails to provide irrebuttable evidence that a month-to-month tenancy did not occur under Section 1945. Tenancy under a writing fixing a monthly rental but no definite time for its continuance has been held to be a tenancy from month to month. (*Flournoy v. Everett* (1921) 51 Cal.App. 406, 407; *Watkins v. McCartney* (1922) 57 Cal.App. 643, 644.) Even where a definite term, such as one month, is fixed by the parties when the tenant goes into possession, if he holds over without further agreement after the expiration of that term, the term of such holding over is not specified by the parties but is fixed under Section 1945.

Here, Plaintiff provided Defendant with a three-day notice to terminate which terminated Defendant's tenancy. Defendant's possession after the termination date fixed in the notice was "without the permission of the landlord," within the meaning of subdivision 2 of section 1161 of the Code of Civil Procedure, and Plaintiff can maintain an unlawful detainer proceeding under that subdivision.

Even accepting as true Defendant's argument that a month-to-month tenancy did not occur, if the tenant holds over after written notice of termination of tenancy, the tenant may be sued in unlawful detainer without the 3-day notice. (See CCP § 1161(5); [§ 754] *Where No Notice Is Necessary.*, 12 Witkin, Summary 11th Real Prop § 754 (2026).) The typical example is a tenancy for a fixed term. (See *Ryland v. Appelbaum* (1924) 70 Cal.App. 268, 270; *Black v. Black* (1926) 77 Cal.App. 82, 85.)

For purposes of this motion only, Defendant concedes that termination of the lease occurred August 31, 2024 — after a fixed term of ten years. Therefore, after the lease termination, when Plaintiff provided written notice of termination of tenancy and Defendant still remained in possession of the property, the unlawful detainer action that followed was proper under section 1161(1). Moreover, 1161(1) does not preclude the collection of rent. As stated above, Section 1161(1) supplements section 1161(2) by providing specific procedures and protections for cases involving estimated rent amounts and partial payments. (CCP § 1161(1).)¿

The rule applies to a tenancy at will, which "expires" when proper notice of termination is given. No additional 3-day notice is required. (CCP 1161(1); See also *Palmer v. Zeis* (1944) 65 Cal.App.2d Supp. 859, 862; *Hennessy v. Gleason* (1947) 81 C.A.2d 616, 619.)

Therefore, under either a month-to-month tenancy or the expiration of the lease term tenancy, once Plaintiff served Defendant with the notice to terminate, Plaintiff was able to pursue an unlawful detainer action. Furthermore, while Defendant argues Plaintiff failed to accept rent, the deposition testimony demonstrates Defendant failed to pay rent. (Mot., p. 2: 11-14.) The deposition testimony is as follows:

Q. Okay. And so is that your position that the lease term expired August 31st, 2024?

A. Yes.

Q. Okay. And has Urban Soccer remained in possession of 12000 Firestone Boulevard continuously since before August 31st, 2024, to the present?

A. Yes.

Q. And you were aware, you have personal knowledge that it remains in possession today; correct?

A. Yes. Open and running.

Q. Since September 1st, 2024, have you received any payments from or on behalf of Urban Soccer for its occupancy of the premises?

A. No.

Q. Okay. And if Urban Soccer were to make a payment after August 2024, would you accept it?

A. Yes

(Tatone Decl., ¶ 4, Exh. A, Vernola-Salas Depo. 92: 4–20.)

Defendant would have the Court find that no rent is owed because no rent was paid. This is a logical fallacy. Because Defendant fails to meet its prima facie burden, the burden does not shift to Plaintiff to raise a triable issue of material fact.

Separate Statement

Plaintiff failed to submit a separate statement. However, given Defendant failed to meet its prima facie burden, the Court will exercise its discretion to not grant summary judgment based on this procedural defect. (CCP § 437c (b)(1), (3).)

Accordingly, summary judgment is DENIED.